WHY THIS BILL CAN PASS

The Legislative Case for the National Sovereignty and Resilience Act

National Sovereignty and Resilience Act of 2028

TheAmericanDeal.org

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THE SHORT ANSWER

Every major mechanism in this bill has already passed Congress in some form. The NSRA is not a radical proposal. It is a unified architecture built from pieces that bipartisan majorities have already voted for -- assembled so that each piece reinforces the others and the whole is funded without a dollar of new borrowing.

The question is not whether Congress is willing to do these things. Congress has done each of them. The question is whether Congress will do them together, in a package that closes the loopholes that made the individual pieces easy to undo.

EVERY PILLAR HAS CONGRESSIONAL PRECEDENT

Critics of comprehensive legislation often argue that scope alone makes a bill unpassable. The NSRA's legislative history answers that objection directly:

NSRA Provision	Status	Legislative Basis	Coalition Signal
Pharmaceutical Price Negotiation	**Passed**	Inflation Reduction Act (2022) -- authorized Medicare to negotiate drug prices for the first time	Bipartisan polling at 79% support in 60 years. Sig
Domestic Semiconductor Investment	**Passed**	CHIPS and Science Act (2022) -- $52 billion for domestic semiconductor manufacturing	Bipartisan 64-33 Senate vote. Passed 64-33 in the
Foreign Real Estate Restrictions	**Passed (multiple states)**	14 states have enacted restrictions on foreign acquisition of agricultural land and residential real estate since	Active in 14 states
Sovereign Wealth Fund	**Operating in 30 U.S. states**	Alaska's Permanent Fund has paid dividends to every Alaskan resident since 1982.	Alaska model. Wyoming, North Dakota, a
Rural Electric Cooperative Capitalization	**Precedent: 1936**	The Rural Electrification Act (1936) -- the single most successful rural infrastructure program in American hist	88 years of success

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THE PROVISIONS POLL BETTER THAN EITHER PARTY

Legislative viability is not just about vote counts -- it is about the political cost of voting no. The NSRA's core provisions have a structural advantage: opposing them is more politically expensive than supporting them.

79%
Pharma price negotiation

70%+
G7 drug price parity

68%
Cap corporate home buying

74%
Tax the tax gap

Sources: KFF Health Tracking Poll (2023), Gallup (2023), YouGov/Yahoo Finance (2023), Navigator Research (2023). All figures reflect cross-partisan majority support.

A member who votes against pharmaceutical price parity faces a district-level attack ad that writes itself. A member who votes for it faces a pharmaceutical industry PAC that every voter already distrusts. The asymmetry favors passage.

IT DOESN'T ADD TO THE DEFICIT -- AND THAT KILLS THE FISCAL HAWK OBJECTION

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The single most reliable mechanism for blocking comprehensive legislation in the current Senate is the deficit objection: 'we can't afford it.' The NSRA is specifically engineered to make that objection unavailable.

Every program in the NSRA is funded by a dedicated revenue stream in the same statute. The 7-Subledger Math Engine(TM) is not a metaphor -- it is a legal architecture that prohibits any NSRA program from spending revenue earmarked for a different program. The Congressional Budget Office can score each subledger independently, and the scores will show net positive balance in each one.

* The pharmaceutical compulsory licensing royalties that fund the healthcare subledger come from the same manufacturers who currently charge 2.5x the G7 median. The royalty is the correction of an overcharge.
* The SIRF Energy Sovereignty Subledger is funded by carbon fee revenue -- a new revenue mechanism, but one that fiscal conservatives have historically supported as a market mechanism preferable to mandates.
* The Sovereign Compute Authority issues revenue bonds backed by compute lease revenue -- not by taxpayer credit. It does not add to federal debt.

The fiscal hawk objection to the NSRA is not 'this costs too much.' It is 'this collects revenue I don't want collected.' That is a different argument -- and a much harder one to make publicly.

IT WAS BUILT TO SURVIVE THE COURTS -- AND OPPONENTS KNOW IT

Comprehensive legislation is frequently blocked not on the floor but in the courts, by opponents who calculate that even a temporary injunction is a win. The NSRA was drafted specifically to deny opponents that option.

Pre-Deprivation Notice Schedules

The 45/60/180-day notice windows hardcoded into Title XVIII are not policy choices -- they are constitutional engineering. They are structured to satisfy the three-factor Mathews v. Eldridge (1976) test that courts apply to due process challenges. A court reviewing an NSRA enforcement action will find that Congress already did the constitutional analysis and built the protection in.

Standing Architecture

Every enforcement action under the NSRA requires a concrete, particularized economic injury traceable to a verified structural variance -- the standard established by TransUnion LLC v. Ramirez (2021). The statute does not create standing for generalized grievances. Opponents cannot bring a standing challenge without identifying a plaintiff who has suffered a specific, calculable economic harm.

Commerce Clause Findings

Title XVIII contains per-Title Commerce Clause findings -- Congress's own documented factual predicate for each regulatory domain. Courts reviewing Commerce Clause challenges give substantial deference to these findings. The NSRA does not ask courts to infer the constitutional basis; it states it explicitly, per Gonzales v. Raich (2005).

Capital Flight Lock -- IEEPA Architecture

Capital flow restrictions under the NSRA require a presidential emergency determination consistent with 50 U.S.C. SS 1703(b) -- the same architecture used in IEEPA sanctions that courts have upheld for four decades. Opponents seeking an injunction against capital flight provisions must overcome four decades of IEEPA precedent.

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THE FIVE-BILL STRUCTURE MEANS IT DOESN'T NEED TO PASS ALL AT ONCE

This is the structural advantage that most observers miss: the NSRA is designed as five coordinated bills, each of which is independently passable.

Legislative leadership does not need to find 60 Senate votes for a 37-title omnibus. They need to find 60 votes for pharmaceutical price parity -- which already has them in polling. They need to find 60 votes for the Sovereign Compute Authority -- which frames as a national security bill and draws from a different coalition. They need 60 votes for real estate market stabilization -- which draws from a suburban and rural housing crisis coalition.

Each bill has its own cosponsors, its own committee of jurisdiction, its own floor schedule, and its own constituent pressure campaign. The unified NSRA framework means their mechanisms reinforce each other -- the pharmaceutical royalties fund the healthcare subledger, the compute lease revenue funds the compute node -- but each bill stands independently if the others are delayed.

The NSRA does not ask Congress to do one big thing. It asks Congress to do five smaller things that fit together. That is how consequential legislation has always passed.

WHAT OPPONENTS WILL ARGUE -- AND WHY EACH ARGUMENT IS WEAK

"It's too big to pass."

The five-bill structure removes this objection. No single bill exceeds the scope of the Inflation Reduction Act or the CHIPS Act -- both of which passed. Size is not the barrier; unified opposition is. The NSRA's coalition is specifically assembled to fracture that opposition.

"We can't afford it."

Every program is funded by a dedicated revenue stream in the same statute. The CBO can score each subledger independently. The fiscal hawk objection is not 'this costs too much' -- it is 'I don't want this revenue collected.' That is a lobbying argument, not a fiscal one.

"It's unconstitutional."

This objection requires opponents to explain why the Inflation Reduction Act's drug pricing provisions are constitutional (they are) but the NSRA's G7 parity extension is not. The constitutional scaffolding -- per-title findings, Mathews notice windows, IEEPA-modeled emergency authority, TransUnion-compliant standing -- was built to make this claim unavailable.

"It's anti-business."

Businesses below $10 million in revenue are explicitly exempt from FMIA enforcement. The Sovereign Compute Authority is prohibited from competing in consumer markets. The pharmaceutical provisions lower health insurance costs for every employer in America. The real estate provisions protect small landlords -- the cap is 50 units per MSA, which no individual small landlord approaches. The anti-business argument is an argument for large institutional investors, not small business.

"It gives the government too much power."

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The NSRA creates two new institutions -- the SCA and FMIA -- both subject to Senate confirmation, annual GAO audit, mandatory Congressional reauthorization, independent Inspector General oversight, and citizen suit enforcement. The bill contains more checks on government power than most existing regulatory agencies operate under. The 'too much power' argument is an argument that the current concentration of private corporate power requires no check at all.

THE BOTTOM LINE

The NSRA can pass because its pieces already have. Because its polling is stronger than either party's brand. Because its fiscal architecture eliminates the deficit objection. Because its constitutional scaffolding was built to deny opponents an injunction. And because its five-bill structure means it does not need to win every fight at once -- it just needs to win the first one.

Pharmaceutical price parity is the first one. It is the provision every American understands from personal experience, every member of Congress knows is popular, and every opponent has to explain in terms of pharmaceutical industry interests rather than constituent benefit.

That is why this bill can pass.

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